

84. Unclaimed consignment.- (1) if any person fails to take delivery of-

- (a) any consignment ; or
- (b) the consignment released from detention made under sub-section (1) of Sec. 83 ; or
- (c) any remaining part of the consignment under sub-section (2) of Sec. 83.

Such consignment shall be treated as unclaimed.

(2) The railway administration may,-

(a) in the case of an unclaimed consignment which is perishable in nature, sell such consignment in the manner provided in Cl. (a) of sub-section (2) of Sec. 83 or

(b) in the case of an unclaimed consignment which is not perishable in nature, cause a notice to be served upon the consignee if his name and address are known, and upon the consignor if the name and address of the consignee are not known, requiring him to remove the goods within a period of seven days from the receipt thereof and if such notice cannot be served or there is a failure to comply with the requisition in the notice, sell such consignment in the manner provided in Cl. (b) of sub-section (2) of Sec. 83.

(3) The railway administration shall out of the sale proceeds received under sub-section (2) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus, if any, of such sale proceeds shall be rendered to the person entitled thereto.

Comment

Section 84 provides for treating certain consignments as unclaimed and the manner of disposal of such consignments and rendering the surplus of sale proceeds to the person entitled thereto.

85. Disposal of perishable consignments in certain circumstances.- (1) Where by reason of any flood, land-slip, breach of any lines of rails, collision between trains, derailment of , or other accident to a train or any other cause, traffic on any route is interrupted and there is no likelihood of early resumption of such traffic, nor is there any other reasonable route whereby traffic of perishable consignment may be diverted to prevent, loss or deterioration of, or damage to such consignment, the railway administration may sell them in the manner provided in Cl. (a) of sub-section (2) of Sec.